



Memo

Date: September 30, 2022
To: Honorable Lisa Herbold, Chair, Public Safety and Human Services Committee
From: Adrian Matanza, Departmental Relations Director, Department of Finance and Administrative Services
Subject: Response to Statement of Legislative Intent FAS-003-B-001 (Increased Efficiencies in Animal Control Patrolling)

Introduction

During the 2022 budget process, the City Council adopted Statement of Legislation Intent FAS-003-B-001, titled "Request that FAS report on increased efficiencies in animal control patrolling."

This Statement of Legislative Intent (SLI) would request that the Department of Finance and Administrative Services (FAS) provide a report on potential increases in efficiencies that would increase the time spent by, and total number of Animal Control Officer II positions dedicated to, the enforcement of relevant City ordinances in City parks.

The report should include sufficient information to allow Council to evaluate potential means to increase parks enforcement by Animal Control Officers while minimizing negative impacts on other duties, including those benefitting homeless and underserved communities and responding to animal cruelty and aggressive animal issues. The report should also include an evaluation of the potential outcomes of increased use of informational materials and expansion of community-based services. Overall, the report would be useful to the extent that it helps inform future Council decisions supporting better enforcement of leash and scoop laws in City parks.

The report should be submitted to the Chair of the Public Safety and Human Services Committee, or successor committee, and the Central Staff Director, by June 30, 2022.

Background Information

The Seattle Animal Shelter is housed in the Department of Finance and Administrative Services (FAS) and has 40 employees. Beyond veterinarians and shelter management, the vast majority of staff are either Animal Control Officer Is (ACO Is) or Animal Control Officer IIs (ACO IIs). The staffing configurations and responsibilities of each group are noted below.

SAS 2022 Staffing Matrix*

Position Type	# Approved	# Filled	Maximum On-Duty Positions Per Shift	Parks Patrols FTE
ACO I	8.0 FTE	5.0 FTE	4	N/A
ACO II	14.0 FTE	12.0 FTE	6	2.0 FTE

*Reminder – This is a 7 day/week operation. Numbers are current as of Aug. 1, 2022.

ACO I

The Animal Care Unit (ACU) is composed of eight ACO I positions, including one underfilled ACO II. The ACO Is are responsible for the daily care and routing of animals at the shelter. They also manage animal adoptions, surrenders and redemptions as well as phone and email communications related to these tasks for the seven-day per week operation. This results in four ACO Is at any given time caring for animals in the shelter.

ACO II

The Field Services Unit (FSU) of the Seattle Animal Shelter (SAS) is composed of 14 ACO II positions with one underfilled as an ACO I and one vacancy. Currently, there are 12 full-time ACO IIs who are responsible for all animal control authority and activity for SAS. ACO IIs have special commissions that enable them to issue citations, serve warrants, testify on criminal cases, retrieve Washington State Department of Licensing data and access properties marked “no trespassing.” This unit responds to animal related complaints, including aggressive animals, animal cruelty, wildlife, outreach to homeless encampments and neighborhood disputes and is also responsible for patrolling the City’s parks for violations. They work closely with the City Attorney’s Office (CAO) and the Seattle Police Department (SPD) to manage cases, prosecute, investigate and serve warrants (when SPD backup is needed). In the current staffing level, a maximum of six ACO IIs are on duty at any one time.

One ACO II per day is assigned as an in-house dispatcher, leaving four to six ACO IIs to respond to requests for assistance in neighborhoods, homeless outreach support and parks patrols. On days with a full complement of seven staff members, this allows for an ACO II assigned to each neighborhood patrol areas in the North, Central and South and Southwestern parts of the city and a pair of officers assigned to patrol parks. The ACO II also provides support to the shelter for cleaning, feeding and care of the animals in times of staffing need. On days with fewer than seven ACO IIs, SAS must balance limited staff between neighborhood responses, parks patrols and homelessness assistance.

In 2021, when FSU staff were in the field, they responded to the following calls for service:

FSU 2021 Response Types	Subtotal Response Count	Total Response Count	% of Total Responses
Field Service Calls (outside of city parks): <i>Top Five calls below plus Scoop Law violations on both public and private property, Dead Animal Pickups</i>		1,944	35%
Top Five FSU Service Calls:			
<i>Noise complaints</i>	461		
<i>Leash law violations</i>	364		
<i>Confined stray animal</i>	310		
<i>Transport animal to/from vet</i>	298		
<i>DOA domestic animal</i>	139		
Parks Patrols		1,850	33%
Cruelty Investigations: <i>Physical abuse, Failure to provide vet care, Keeping an animal in unsanitary conditions, Animals in hot vehicles, etc.</i>		741	13%

FSU 2021 Response Types	Subtotal Response Count	Total Response Count	% of Total Responses
Aggressive Animal Investigations: <i>Animals biting other animals or people, Animals approaching people in a menacing fashion</i>		534	10%
Wildlife Calls: <i>Injured, sick, deceased and immature wildlife</i>		527	9%
Total		5,596	100%

ACO IIs are assigned to patrol City parks in pairs 80 hours per week. ACO IIs work together for safety, and because it's likely they will need to contact multiple people simultaneously who are running their dogs off leash. ACO IIs have worked in cooperation with SPR Rangers to enforce leash, scoop and licensing requirements as outlined in the Seattle Municipal Code. Officers respond to requests to patrol specific parks and conduct routine patrols of parks in an assigned patrol area. Patrol areas are rotated daily to ensure coverage of the North, Central, and South and Southwest districts of the city. In 2021, ACO IIs patrolled 344, or 70%, of the city's 489 parks. While not all parks are patrolled by ACO IIs each year, the ones that are patrolled are those identified by residents or SPR site staff.

Parks Patrol Challenges

Recently ACO IIs have faced an increase in resistance to their presence in parks. Residents regularly ignore officers' requests for identification or simply walk away or flee when contacted (see Attachment A). They also use social media platforms like Facebook groups to communicate ACO IIs locations with each other and encourage non-compliance with officers' requests (see Attachment B). Seattle Police Department officers have historically assisted ACO IIs in obtaining identification from resistant residents to issue an infraction for violating the Seattle Municipal Code. Identification is needed to issue citations, and only sworn officers have the sufficient level of commission to retrieve identification from resistant residents. Recently, though, police officers have been unable to assist. If SPD is unable to assist, SAS will continue to be unable to issue citations for leash law violations from people who refuse to show identification.

ACO II Special Commission Duties vs. Duties Needing SPD Support

Animal Code Enforcement Duties	ACO IIs with Special Police Commission	SPD Sworn Officers
Issue Citations	✓	
Serve Warrants	✓	
Testify on Criminal Cases	✓	
Retrieve WA State Department of Licensing Data	✓	
Access Properties Marked "No Trespassing"	✓	
Retrieve Identification from Residents who Refuse to Provide Identification to ACO IIs for Citation Issuance		✓

ACO IIs are unable to identify pet owners and therefore cannot issue infractions. Instead, a verbal warning with no record of the violator's information is issued. Without identification, there is no way to know if the individual is a repeat violator of the leash law requirement and therefore should receive an infraction instead of a warning. SAS has adjusted its approach to park code violations by issuing verbal warnings on all first contacts with education as to the negative impacts off leash dogs have on the park grounds. ACO IIs try to obtain identification through education with a warning of a possible infraction for future violations of the SMC pertaining to the leash law in Parks.

Options for Improvements and Efficiencies

Achieving compliance with leash and scoop laws in City parks requires a holistic approach, involving enforcement, position adds and more robust educational campaigns. Note that any of the following approaches would need additional resources and partnership with Council on a successful path forward.

A. Enforcement Options

Increasing ACO II presence in parks within the current staffing level would negatively impact the SAS' ability to provide other services across the city and with the current challenges to enforcement would likely not have the impact of increased compliance. There are several options that might yield better outcomes; however each requires funding and staff resources to implement.

1. Increase the partnership between ACO IIs and Seattle Parks and Recreation (SPR) Rangers.

Prior to 2020, ACO IIs and SPR rangers paired up to patrol parks. While this didn't increase the total number of hours ACO IIs were dedicated to parks, it increased the number of patrols overall.

Dedicating a team of ACO IIs and SPR rangers to focus solely on parks enforcement and community education/outreach could have positive impacts. This team would be combined into one unit and independent from the daily assignments/tasks of regular ACO IIs and Parks rangers. They would still need SPD support in detaining uncooperative individuals to obtain ID to issue either an official verbal warning or citation, as neither ACO IIs nor Parks rangers have the power to detain individuals.

The Seattle Park District Board has approved funding an additional 2.0 FTE ACO IIs beginning in 2023. This would add 40 additional hours of ACO II parks patrols per FTE per week to the already dedicated parks patrol hours. The ACO II schedules can be adjusted seasonally to take advantage of daylight, so in the summer they could patrol later in the day and in the winter they could patrol earlier in the day. Patrols could be scheduled seven days of the week, with some days seeing two separate teams patrolling the same shift (again, patrols operate in teams for safety).

During the past year (7/19/21 to 7/20/22), the 20 city parks with the greatest number of calls for service* were:

Frequency Ranking	Park Name	Number of Service Requests	City Geographic Quadrant
1	Volunteer Park	61	Central
2	Judkins Park	33	South
3	Alki Beach	33	Southwest

4	Lincoln Park	26	Southwest
5	W. Queen Anne Playfield	25	Central
6	Cal Anderson/Bobby Morris	23	Central
7	Magnusson Park	21	North
8	Rogers Playground	20	Central
9	Madison Middle School	20	Southwest
10	Interbay Playfield	19	Central
11	Discovery Park	18	North
12	Maple Leaf Reservoir	17	North
13	Loyal Heights	16	North
14	TT Minor Playfield	16	South
15	Wallingford Playfield	16	North
16	Meridian Playfield	14	North
17	Golden Gardens Park	13	North
18	Soundview Playfield	12	Central
19	Salmon Bay Park	12	North
20	Sandel Playground	12	North

*The majority of calls for service include service requests that come in via phone, website or other method from the public. A smaller subset is entered by ACO IIs based on field observations.

Efficiencies can be gained by dispatching parks patrols in ways that take advantage of geographic location, so the parks receiving the greatest number of calls can be more proactively patrolled to leverage adjacency within each quadrant. ACO IIs could potentially work as fixed units or could be deployed to add up to 80 hours a week in a way that takes advantage of ACO IIs who are already out in neighborhoods on high-priority calls. We are also working to improve data reporting so we can better track not just parks by number of patrols, but also by citations issued (though this number is not that informative given our challenges with issuing citations) and by the amount of time spent on patrol within each park. There may also be a way to increase efficiency by partnering less formally with SPD officers who can be nearby when ACO IIs are on site at different park locations.

B. Add a Foster Care Coordinator position and a Behaviorist position to reduce demand for ACO IIs doing Animal Care work.

ACO IIs currently backfill for ACO Is when there is a staffing need due to planned or unplanned absences and vacancies. By adding a Foster Care Coordinator position and a Behaviorist position, animals could be moved out of the shelter and into foster care more quickly, thereby reducing the number of animals to need care at the shelter. The reduction in animals at the shelter would result in a decreased need for ACO IIs to backfill ACO Is as ACO Is are better positioned to manage in-shelter animal care workload. The ACO IIs would therefore have more capacity to respond to high priority calls in both neighborhoods and in parks. As these are new, temporary positions funded through 2023 by the Seattle Animal Shelter Foundation, we will be setting a baseline of in-shelter and foster care animal numbers and then monitoring throughout the year the number of animals moved into foster care and then to adoptions, as well as the length of time they spend in SAS care.

C. Educational Campaigns

When dogs are off leash in parks, there's a negative impact on SPR property and on parks users whose enjoyment of the open space may be interrupted. On the former, SPR has found high levels of fecal coliform in the soil, destruction of ground nesting bird habitats and danger to marine mammals (seals, sea lions, sea otters) on beaches like Alki. On the latter, off leash dogs have charged and bitten people; approached other parks users whose dogs are leashed, causing anxiety for people and their pets; and have run into the right-of-way and caused bicycle- and car accidents.

One approach to increasing compliance with leash and scoop laws is to engage with the public using campaigns showing the very real impacts of off leash pets. SAS could maintain a consistent digital presence on web and social media where information could be disseminated more quickly and could keep up to date with seasonal issues and changes.

Media campaigns can include advertising on West Seattle Blog and Capitol Hill Blog, as well as public service campaigns for storm response like Seattle Public Utilities' "Take Seattle by Storm." ACO IIs could also carry informational flyers with them on parks patrols and when attending calls in the neighborhoods that would inform the public about the hazards of off leash dogs, and potentially the locations of nearby Off Leash Areas. SAS would like to explore partnering with local media outlets to get the word out about the need for leash law compliance similar to what SAS has done to increase visibility about [adoption fee discounts](#).

SAS also proposes continuing to partner with SPR to maximize both departments' outreach potential. SAS has provided feedback on an [educational video](#) SPR runs on social media platforms. In the future, the two departments would like to participate on further collaborations. For example, SAS recognizes the 15 Off Leash Areas currently housed in city parks and on Seattle City Light property, with three more coming online in the near future, will provide increased opportunities for dog owners to comply with leash laws. While OLAs carry their own challenges related to socially unacceptable dog and human behavior, there is potential for SAS and SPR to work together in a way that will make the OLAs more inviting for everyone. For example,

- SAS and SPR could combine efforts to train volunteer OLA stewards about dog behavior, cutting down on the number of fights and thereby making OLAs more inviting. If the OLAs are more inviting and more people use them, this could increase OLA visits and therefore leash and scoop law adherence.
- SAS and SPR may also find it beneficial to partner on simplifying parks signage for maximum compliance, or potentially surveying residents not using OLAs to understand their choice. In-person engagement at town halls, community meetings and events will also get the word out about leash and scoop responsibilities for pet owners. SAS could partner with SPR at Town Hall meetings near the Top 20 service call parks to get the word out about leash law compliance and the nearest OLAs. Animal Shelter leadership, trained volunteers and staff are all resources for interacting with and educating the public.

Case View Report



Seattle Animal Shelter
 2061 15th Avenue W
 Seattle, Washington 98119 USA
 seattleanimalshelter@seattle.gov
 www.seattleanimalshelter.org
Tel.: 206-386-7387

Printed: 05/20/2022 05:25PM **By:** Homeier

Case Details

Case #: **C06948202**
 Reference #:
 Status: **Closed**

Case Date/Time: **05/20/2022 01:52PM** Reported:
 Jurisdiction: **Seattle**
 Additional Info: **C/ states off leash dogs chasing seagulls on the beach during low tide**

Category: **Incident**
 Type: **Parks**
 Subtype: **Patrol**
 Officer: **Jon Wieringa**
 Review Date:

Alki Beach Park, Seattle, 98116, Washington, United States
 Location Type: **Park**
 Directions:
 Result: **Verbal** By: **Jon Wieringa** Date/Time: **05/20/2022 05:07PM**
 Result Comments:

Created By: **Linke**
 Created: **05/20/2022 01:55PM**
 Last Updated By: **Jonw**
 Updated: **05/20/2022 05:07PM**

Animal Info: **dogs**
 Person Info: **anonymous**

Case Activities

<u>Activity #:</u>	6563603	<u>Conditions:</u>		<u>Danger?</u>																
<u>State:</u>	Closed	<u>Jurisdiction:</u>	Seattle	<u>Patrol Area:</u>	Southwest															
<u>Type/Subtype:</u>	Dispatch-Park - Alki Beach Park	<u>Cross Streets:</u>		<u>Distance:</u>	0															
<u>Priority:</u>	Low	<u>Created Date/Time:</u>	05/20/2022 01:56PM	<u>Created By:</u>	Linke															
<u>Review Date:</u>		<u>Last Updated Date/Time:</u>	05/20/2022 04:16PM	<u>Last Updated By:</u>	Jonw															
<u>Comments:</u>																				
	<table><tr><td>Status History</td><td>Status Date/Time</td><td>Activity Owner</td><td>Status Update Date/Time</td><td>Status Updated By</td></tr><tr><td>Ended</td><td>05/20/2022 04:15PM</td><td>Jon Wieringa</td><td>05/20/2022 04:15PM</td><td>Jon Wieringa</td></tr><tr><td>Assigned</td><td>05/20/2022 01:55PM</td><td>Parks LP</td><td>05/20/2022 01:55PM</td><td>Robert Linke</td></tr></table>					Status History	Status Date/Time	Activity Owner	Status Update Date/Time	Status Updated By	Ended	05/20/2022 04:15PM	Jon Wieringa	05/20/2022 04:15PM	Jon Wieringa	Assigned	05/20/2022 01:55PM	Parks LP	05/20/2022 01:55PM	Robert Linke
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	Result Qty	Result	Is Primary	Result Date	Result By															
1	Dispatched	Yes	05/20/2022 04:16PM	Jon Wieringa																
<u>Activity #:</u>	6563807	<u>Conditions:</u>		<u>Danger?</u>																
<u>State:</u>	Closed	<u>Jurisdiction:</u>	Seattle	<u>Patrol Area:</u>	Southwest															
<u>Type/Subtype:</u>	Park Patrol - Alki Beach Park	<u>Cross Streets:</u>		<u>Distance:</u>	0															
<u>Priority:</u>	Normal	<u>Created Date/Time:</u>	05/20/2022 04:17PM	<u>Created By:</u>	Jonw															

Review Date:		Last Updated Date/Time:	05/20/2022 05:05PM	Last Updated By:	Jonw															
Comments:	On 5/20/2022 between 1615hrs and 1705hrs I patrolled the most populous 1/2 mile of Alki Beach Park on foot. I made three soft contacts with individuals with dogs on-leash on the upper portion of the beach. All three left the beach immediately. I also made three contacts with individuals with off-leash dogs. The first leashed his dog and left the beach without speaking to me, refusing to identify himself. He stayed on the concrete sidewalk above the beach until I left, at which time I observed him walk back down to the beach with his dog. The second individual also refused to identify herself, stating, "Everybody down here knows you guys are a joke and can't do anything. Go ahead and make me identify myself." She leashed her dog but did not leave the beach with the dog. The third individual stated that she knew she didn't have to say anything to me, refused to identify herself, walked with the dog to the bathrooms, then returned to the beach and let the dog off leash once I was out of the immediate area.																			
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6	Violations Observed	Yes	05/20/2022 05:05PM	Jon Wieringa																

Case Memo(s)

<u>Memo #</u>	<u>Reference</u>	<u>Reference #</u>	<u>Memo Type</u> <u>Memo Subtype</u>	<u>Created Date/Time</u>	<u>Created By</u>	<u>Updated Date/Time</u>	<u>Updated By</u>	<u>Review Date/Time</u>
6352953	Case		Statements	05/20/2022 02:18PM	Linke	05/20/2022 02:15PM	Linke	
Supervisor Homeier wants a patrol of Alki (non emphasis), per Director Rodriguez, for same C/ who reported dogs chasing either seagulls or eagles at park beachfront. Please communicate to Homeier when patrol can be completed so she can relay to Rodriguez that it was completed.								

Attachment B

